

Compensation Agreement

This Compensation Agreement is executed at _____ on this ____ day of _____ 202__; by and between;

The First Party(ies):

Individual(s)				
Full name in capital letters	Age (yrs.)	W/o, D/o, S/o	Aadhar Card No.	Communication Address
Or (Kindly strike off whichever is not applicable)				
A company incorporated under the Companies Act, 1956 / 2013 / partnership / Proprietorship / LLP firm / Society / Trust				
Name of the entity	Registered office address		Office address	

(hereinafter referred to as the “First Party(ies)” which term and expression wherever the context so requires and permits and unless repugnant to the context thereof, shall mean and include, as the case may be his/her/their/its legal heirs, executors, legal representatives, agents, successors in-interest and, permitted assigns, administrators, subsidiaries, affiliates, successors-in-interest, group companies etc.) of the ONE PART;

And

“ The Second Party”	Name of the Company	Registered Office Address	Circle Office Address
	Indus Towers Limited	Building No. 10, Tower A, 4th Floor, DLF Cyber City, Gurugram – 122002	

(hereinafter referred to as the “Second Party” which term and expression shall wherever the context so requires and permits shall mean and include it’s subsidiaries, affiliate, group companies, successors-in-interest and assigns) of the OTHER PART.

First Party(ies)

Second Party

The First Party(ies) and Second Party are hereinafter collectively referred to as the “Parties” and severally as a “Party”.

WHEREAS the Second Party is a registered Infrastructure Provider, Category – I (IP-I) by virtue of registration granted by the Department of Telecommunications, Ministry of Communications & IT, Government of India, and is engaged in the business of establishing, operating & maintaining the infrastructure (including telecom infrastructure), including but not limited to, Dark Fibre, Right of Way, Duct Space and Tower(s)(s), shelter, diesel generator sets, air conditioners, other allied equipment, electrical and civil works and related operations and maintenance thereof and provide the same on sharing basis (hereinafter referred to as the “Activity(ies)”) inter-alia to various Telecom and IT Service Providers duly licensed / authorised by the Government of India and are jointly and severally providing essential and public utility services;

AND WHEREAS the First Party(ies) has represented to the Second Party that he/she/they is/are the absolute, legal and bona fide owner/co-Owner(s) having unfettered rights along with clear and marketable title, free from all encumbrances (mortgages, charge, etc.), restrictive covenants, lis-pendense, litigations or disputes and is in peaceful possession of the property mentioned in Table A of this Agreement, (along with its roof and terrace rights (if applicable)) (hereinafter referred to as the “Property”) which is in conformity with all applicable laws and rules and regulations of the concerned/appropriate authorities;

AND WHEREAS the First Party(ies) have represented to the Second Party that he/she/they is/are legally entitled to, and has all requisite power and authority to enter into this Agreement and provide to the Second Party an area of mentioned in the Table A of this Agreement, either entirely at one place or in the form of bifurcated area(s) at the Property, including but not limited to, the exterior walls of the building at the Property, as indicatively depicted in the site plan attached as Annexure L3 to this Agreement (hereinafter referred as the “Premises”) together with all rights, easements, privileges belonging to the same or purports to belong to it or usually held or enjoyed with it under the law and this Agreement, and the right of ingress and egress to, and use thereof, of all common areas, entrance, facilities etc. of and with respect to the Property to access and use the Premise so as to enable the Second Party to fully enjoy the same without any legal impediment and / or otherwise;

AND WHEREAS based on the written as well as oral representation(s), assurance(s) and warranties of the First Party(ies) the Second Party has agreed in good faith to take the Premises from the First Party(ies) along with the rights mentioned in this Agreement on the terms and conditions as mutually agreed between the Parties and set out herein below.:

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS: -

1. This document along with the Part II – Annexures, (Annexure L1 - Terms and Conditions (“T&Cs”); Annexure L2 - Description and layout of the Premises; and Annexure L3 - No Objection Certificate(s); are collectively referred to as the “Agreement” and shall be binding upon the First Party(ies) and the Second Party. Capitalized terms shall have the meaning ascribed to them in this Agreement and the T&Cs document annexed herewith as Annexure L1. Notwithstanding anything contained herein the terms in this document shall be subject to the terms in T&Cs document which shall prevail upon these terms.

Table A			
Address of the Property			
Area of the Premises at the Property		“Effective Date” of the Agreement	Term of this Agreement
sq. mtrs.			
Compensation Amount (INR)	(in figures) (in words)		
The above-mentioned Compensation Amount is divided amongst the First Party(ies) as:			
Full name in capital letters	Amount in INR (in figures)	Amount in INR (in words)	

The Compensation Amount will be increased @10% on the last paid Compensation Amount, on expiry of every 5 year(s) from the Compensation Commencement Date.

ALL THAT PLOT OF LAND admeasuring sq. mts. and situated at and butted and bounded as follows:

By the NORTH: BY the EAST:

BY the SOUTH: By the WEST:

This Agreement shall be construed in accordance with applicable laws of India and any dispute arising from the subject matter of this Agreement shall be exclusively adjudicated only by the Court of competent jurisdiction situated at .

IN WITNESS WHEREOF the Parties hereto have signed this Agreement at the place and on the day, month and year first above written.

SIGNED, SEALED AND DELIVERED BY: The First Party(ies) (Name with signature(s))

The Second Party
Indus Towers Limited
Through its Authorised Signatory

In the presence of Witnesses: 1. 2.
Name and signature(s):

Part II - Annexure L1 - TERMS AND CONDITIONS (T&Cs)

This Part II of the Agreement mentions the terms and conditions (“T&Cs”), and are to be read along with the Part I, annexures, appendices, schedules of the Agreement, that all together shall be binding upon the Parties. In the event of conflict, the T&Cs herein shall prevail upon any terms of Part I, annexure(s), schedule(s), appendix(ces) of this Agreement.

The First Party(ies) hereby acknowledges that the Second Party for furtherance of its business interests in accordance with the registration granted by DoT, Govt. of India under the Indian Telegraph Act, 1885 or as permissible under any other law, regulations or policies of the Government, which are existing or may be brought in force subsequently, is undertaking the Premises to carry out its Activity(ies) and for provisioning of its infrastructure / assets / services inter-alia to various Telecom and IT Service Providers viz. Airtel, Vodafone Idea, Reliance Jio, BSNL, MTNL, etc. and third parties duly licensed / authorised by the Government of India (hereinafter referred to as the “**Service Provider(s)**”) and that are jointly and severally providing essential and public utility services, and/or to put the same to any legally permissible use.

1. RIGHTS OF THE SECOND PARTY

1.1 The First Party(ies) hereby, grants and provide to the Second Party, commencing from the Effective Date, the Premises to the Second Party along with the rights that include to hold, use and exercise its rights together with all and singular rights, liberties, privileges, easements and appurtenances whatsoever to the Premises, hereditaments or premises or any part thereof belonging to or in any way appurtenant thereto or enjoyed therewith, as well as the right of ingress & egress to all common areas, entrance, facilities etc. of the Property, for the duration of the Term for the Second Party’s use, and/or to put the same to legally permissible use, with unconditional and unhindered right of ingress and egress and at any time during 24x7x365 days (including during Sundays and holidays) access to the Premises by the Second Party, and its Associated Personnel. For the purposes of this Agreement, “Associated Personnel” shall mean and include subsidiary, affiliate, associate, group company of the Second Party; Service Providers; agents; partners; servants; authorised visitors; service providers; invitees; vendors; contractors; engineers; supervisors; workmen; employees; authorized personnel; sub-contractors; security guards; caretakers etc. thereof.

1.2 From the Effective Date of the Agreement, all rights and privileges of the Second Party mentioned herein, shall immediately come into effect. The Second Party may immediately or at any time, as per its sole discretion and requirements any or all of its rights including as those mentioned herein, commence and carry out any of the activity as that of excavation, installations, fixations, fittings, alterations, air-conditioning, cabling, earthing strips, ducting, laying of optical/electrical/copper cables to ground, flooring, and set up, install, operate and manage its tower, Equipment etc. in and at the Premises.

1.3 The First Party(ies) hereby agrees that, without any derogation of the rights of the Second Party under this Agreement, the initial 90 (ninety) days from the Effective Date shall be Compensation free period (hereinafter referred to as “Compensation Free Period”) and accordingly, for and during the said period, the First Party(ies) shall not be entitled to Compensation from the Second Party and the Second Party shall not be liable to pay any Compensation. However, all other rights and obligations of the First Party(ies) and the Second Party under this Agreement shall commence and be effective and enforceable from the Effective Date. The payment of Compensation shall commence from the expiry of the Compensation Free Period (hereinafter referred to as “Compensation Commencement Date”).

1.4 The Second Party shall have the right and be entitled to, amongst others, install, operate and manage temporary structure on the Premises. The Second Party shall have the right and be entitled to bring in or upon the Premises install, establish, maintain and operate the following including but not limited to:

- a) Tower(s)/Poles/GBM/GBT for multiple antennas;
- b) Civil/pre-fabricated structure/ shelter(s) for equipment's, guard or for any other purpose;
- c) DG Set(s) including standby or backup DG Set of appropriate capacity / solar panel / any other alternate source of producing energy;
- d) Earthing connections as required and laying of the other cables to ground, lightning arrestors and aviation lamp, necessary cabling and connectivity to each antenna/equipment, and space for installation of electricity meter, transformer and power connectivity etc.;
- g) Network equipment (such as BTS, Radios, batteries, antennas, cables, etc.) of Service Providers to whom the Second Party has offered the facilities for sharing;
- h) Ducts, Fibre, Cable inside the premises as well as from outside to inside the premises etc.;
- i) Any other additional equipment, machines etc. as may deemed to be necessary by the Second Party for effective operations and services

The above all are collectively referred to as a the “Cell Site / Equipment”.

1.5 In case of technological advancement and / or technical requirement, the Second Party shall without any recourse to the First Party(ies) be entitled to change the location of the Equipment within the Premises, and / or add, install, remove, modify, upgrade or alter any appliances, apparatus, equipment etc. as may be necessary in its sole discretion at any stage during the subsistence of this Agreement. The Second Party is further entitled to establish, maintain, work, repair, transfer, shift, withdraw or disconnect or replace the appliances or apparatus, its electricity connection etc. at any time in its sole discretion without any let, hindrance or objection from the First Party(ies) including in the circumstances of this Agreement having been terminated/determined by the Second Party. It is specifically agreed and so understood between the Parties that for any such above purpose, the Second Party shall not be liable to pay any additional Compensation or other charges whatsoever. The First Party(ies) shall have no objection for the transfer, devolvment and/or assignment of the rights of the Second Party on account of the Second Party’s merger, de-merger, amalgamation, takeover, re-structuring or any other re-arrangement, and the terms of this Agreement shall continue in the same manner.

1.6 The Second Party shall also be entitled to erect and install a standby/back-up generator of any capacity on the Premises. In the event, the Second Party goes for excavation and/or sets up additional equipment or increases the height of the Tower / Pole or utilizes more space for installing the Equipment in the Premises, the First Party(ies) shall have no objection to the same and will not insist on increasing the Compensation. Further, the Second Party shall bear the entire costs in relation to such activities.

1.7 The First Party(ies) hereby permits the Second Party to allow the use of the Premises by any of its group, associate and / or affiliate company(ies).

1.8 As may be applicable, the Second Party(ies), under this Agreement, shall be jointly and severally, liable and responsible, amongst others, for the representations, warranties, covenants and obligations, expressed or implied in this Agreement; along with the performance of this Agreement.

2. COMPENSATION, STATUTORY AND REGULATORY PAYMENTS

2.1 In consideration of the First Party(ies) leasing the Premises to the Second Party, and on unhindered exercise by the Second Party of any and all of its rights, privileges and benefits under the law and this Agreement, and subject to the terms herein read along with the T&Cs, from the Compensation Commencement Date, the Second Party will pay to the First Party(ies), monthly compensation as per the amount specifically mentioned in the Table A in the Part I of this Agreement (hereinafter referred to as the “**Compensation**”) by the 10th working day for the same month by Bank Transfer, and in exceptional circumstances by way of by cheque / demand draft at the sole discretion of the Second Party. This Compensation is the consideration by the Second Party for any and all rights of the Second Party exercised under this Agreement and apart from this Compensation, the Second Party shall not be liable or responsible for payment of any monies in any manner or under whatsoever name. The Compensation is further subject to any right of the Second Party to deduct, withhold, adjust, set-off, or counter claim under this Agreement. The Compensation amount mentioned in Part I of this Agreement is inclusive of all maintenance charges (if any) levied by First Party(ies), or any third party, or any other tax, if applicable, or cess levied by government during the Term of this Agreement. Further the Compensation shall be paid subject to deduction of tax at source as per the provisions of the Income Tax Act.

2.2 The Compensation and any other payments (if any) payable, by the Second Party, under this Agreement shall be subject to the deduction of income tax at source at applicable rates and / or adjustment of such other amount that is payable by the First Party(ies) under the terms of this Agreement.

2.3 First Party(ies) shall be solely and wholly responsible and liable for any incidence and payment of all past, present and future taxes including Property taxes/ Municipal taxes and any other statutory taxes, levies, duties, charges, which are levied, charged or imposed now or which may be levied, charged or imposed in future, by whatever name called and imposed by Central, State or Local Authorities including any increase as well as the charges on account of and toward the incidence of ownership, etc. (whether normal or enhanced) of the Property and the Premises or for permission to use common areas and facilities of the Property / Premises. However, if any permission charges are to be paid for conducting the Activities, the same shall be paid by the Second Party. In case the First Party(ies) fails to meet the above obligations and/or consequently any action is apprehended to be taken by the concerned authorities or is actually taken by any authority, then in order to protect its rights and meet its obligation to provide uninterrupted services being essential in nature, the Second Party shall be entitled to pay such amount and to set-off the same against the Compensation of the subsequent months which shall be regarded as the compliance under this Agreement, and the Second Party shall not be liable to pay the Compensation to the First Party(ies). In such scenario, the Second Party will furnish to the First Party(ies), the proof of such payment. Further, the First Party(ies) has confirmed and assured the Second Party that all taxes with respect to the Property / Premises have been paid by the First Party(ies), till date, and the First Party(ies) does not have any liability for any past/accumulated taxes, or any interest or penalty in respect thereof, of any nature that may be assessed against Second Party or become a lien on the Property and / or the Premises.

2.4 In view of the provisions relating to GST, the First Party(ies) shall adhere to and shall comply with the requirements under the GST related laws and shall issue invoices, under the GST laws and regulations and in a timely manner and such invoice should reach Second Party within the prescribed time under the GST laws, failing which Second Party shall release only the Compensation, and shall have a right to adjust, set off, deduct or withhold any loss or denial and levy of input tax credit and / or levy of any incidental and consequential interest / penalty thereon due to late or non-submission of invoice, from any of the invoice payable by Second Party or can be recovered from the First Party(ies). In case of non-applicability of GST provisions upon First Party(ies) or non-registration under the GST law, the First Party(ies) shall provide its confirmation in the form of undertaking, the format of which is attached herewith. In case the GST provisions become applicable to the First Party(ies) subsequent to the execution of the present Agreement, the First Party(ies) shall intimate in writing to the Second Party of the applicability and its registration under the GST provisions and comply with the above provisions.

2.5 Notwithstanding anything contained herein, in case the Second Party is unable to access & use its cell site / equipment installed at the Premises or any portion thereof, or due to any action/order of any authority/court/tribunal or a third party etc. due to a reason attributable to the First Party, the Compensation stated herein shall stand automatically be stopped and will not be paid and / or proportionately reduced for the period during which the Second Party is unable to exercise its rights under this Agreement Premises. The decision of Second Party regarding whether it is able to carry out activities efficiently or effectively will be final and binding upon the First Party(ies).

3. RIGHTS AND OBLIGATIONS OF THE PARTIES

3.1 The First Party(ies) confirms that he/she/they has/have understood the criticality of the services rendered by Second Party and the purpose for which the Premises is taken along with all the rights thereof.. The First Party(ies) further understands and agrees that:

- i. the Second Party and the Service Providers are entitled to have and exercise all the rights and entitlements conferred by the Indian Telegraph Act, 1885 or any rules or regulations framed thereunder or by any other law for the time being in force and as such agrees that it shall not raise any dispute or claim or cause any impediment, intervention, obstruction or object to any activity undertaken in the Premises/Property, with respect to the Activities of the Second Party from the Premises being carried with bona-fide in terms of this Agreement and in accordance with law.
- ii. **the Second Party at all times shall be entitled to offer/provide for multi-sharing use of its infrastructure / Cell Site and all or any of its Equipment etc. installed in the Premises to the Service Providers. The First Party(ies) agrees & admits that in accordance with such arrangement(s) the Second Party shall be entitled to grant Service Providers and other entities unhindered access to the Premises and all of them shall be entitled to install equipment's in the Premises. For the limited purposes of this Agreement, all such equipment, cell site shall be deemed to be the equipment, cell site at the Premises under the aegis of the Second Party. No separate consent / permission shall be required, nor any objection shall be raised by the First Party(ies), at any point of time, for the above purpose, nor shall the Second Party be liable to pay any additional Compensation or other charges thereof. It is specifically agreed and so understood between the First Party(ies) and the Second Party that any such multi-operator arrangement(s) with Service Providers other entities for the sharing, use of Cell Site / Equipment etc. installed in the Premises is a basic obligation of the Second Party and therefore shall not be considered and / or treated as a violation or breach of this Agreement.**
- iii. the access to or the use of the Premises by the Associated Persons, their employees, representatives or associates or its service providers for any purpose whatsoever whether mentioned in this Agreement or not but in furtherance of the Activities / Service Providers activities, shall under no circumstances be considered to be an assignment of this Agreement.

3.2 The First Party(ies) acknowledges that for the purpose of effectively using & enjoying the Premises & to augment its Activities, the Second Party is required to put/install Poles / underground cable(s) / fibre / other material within, around or to the Property / Premises. The First Party(ies) hereby grants unconditional and unrestricted permission and the right of way to the

Second Party and / or the Associated Persons to excavate and lay / conceal fiber, cables and other related material, underground /false ceiling/walls, if any, within the Property without any objection and interference from the First Party(ies). The Second Party undertakes that the bare minimum area required for doing the needful as aforesaid shall be used and the necessary repairs /restoration shall be carried out by the Second Party at its own costs and expense. For the purposes aforesaid the Second Party shall have the right of way and access to all such portions of the Property wherein the fiber, cables / material is fixed/set-up for all times during the existence of this Agreement. Second Party shall be entitled to connect its equipment, cell site with networks of other telecom service providers by routing necessary cables, microwaves etc. The Second Party shall also be entitled to connect the optical/electrical/copper cables/wires/fibre etc. through GI/PVC pipes etc. from outside the Premises.

3.3 The First Party(ies) acknowledges after being satisfied about the nature, usage, purpose, specifications, weight and dimensions of the Cell Site / Equipment, to be erected/installed at the Premises and hereby warrants to the Second Party that the Property (including roof/terrace, as may be applicable) is structurally strong enough and can sufficiently withstand the load / weight of the Equipment / Cell Site and undertakes to indemnify and keep indemnified the Second Party, its directors, employees, agents etc. for any loss caused to any third party resulting from any structural instability / weakness / defect in the structure / building / Property / Premises.

3.4 The First Party(ies) agrees & admits that Second Party and the Associated Persons shall be entitled at its sole discretion to engage the services of vendors, contractors, engineers, supervisors, workmen, employees, authorized personnel, sub-contractors, security guards, caretakers and other service providers etc. to erect, install, commission, operate & maintain the Equipment /Cell Site, including or such additional or alternate equipment etc. that may be required from time to time at their own expense and cost. The Second Party and the Associated Persons shall be entitled to carry tools, tackles, heavy machinery, raw materials, cranes, anchorage equipment, winches, pulleys, ropes, scaffolding, brackets, clamps, welding and cutting equipment etc. and to use the same on the Premises. The Second Party shall also be entitled to dig trenches, gutters, chambers and carry out all other plumbing, civil/mechanical and electrical works that are deemed necessary by the Second Party / Associated Persons for the installation of the Equipment / Cell Site and any other equipment.

3.5 The Second Party shall obtain a separate electric connection/s, at its own cost of appropriate capacity (with separate meter and transformer) exclusively for its own use in its own name or in the name of any nominee or person. Further, till the time the First Party does not have its power connection, the Second Party shall provide separate electric meter (sub-meter) for the power back up provided by the First Party for the purposes of the Second Party. The Second Party shall be responsible to pay electricity charges as per actual consumption of electricity. The First Party(ies) hereby agree to shall provide and extend all requisite documents / NoCs / support in obtaining the power connection by the Second Party.

3.6 The Second Party shall be entitled to offer and/or exhibit itself or through Third Party(s), name, logo, advertisements, statutory signage, glow signs, hoardings, etc. of its own/Service Providers/Third Party(s) of such size & at such place as it deem fit in or outside the Premises / Cell Site / Equipment & no charges in any form whatsoever or additional Compensation would be payable by the Second Party for the same. However, all necessary permissions shall be taken & charges, if any, be paid by the Second Party.

3.7 Keys for access to the Premises as well as for gaining entry into the terrace/land (as applicable) shall be provided by the First Party(ies) to the Second Party immediately upon signing of this Agreement. The First Party(ies) shall not alter or suffer to be altered the locking devices for which the said keys are handed over without prior written permission of the Second Party. The Second Party is hereby granted with the authority to physically break open any lock placed on the Premises, a key for which has not been provided by the First Party(ies) to the Second Party and put a new lock of its choice.

3.8 The Second Party shall take insurance for its Cell Site / Equipment and other installations in the Premises; however, the First Party(ies) shall ensure that the Equipment, appliances, apparatus, material, assets, etc., of the Second Party in the Premises are not damaged or tempered with. The First Party(ies) shall not do or cause to be done any act which may render any insurance policy invalid or cause an increase in premium payable. The First Party(ies) may at its sole discretion and own costs keep the Property adequately insured during the Term of this Agreement.

3.9 The First Party(ies) hereby agrees that the Premises may be accessed/used/occupied by the affiliates, associates, holding, subsidiaries and group companies of the Second Party or by the Service Provider(s)/Third Party, their employees, representatives or associates or its service providers for any purpose whatsoever whether mentioned in the Agreement or not but in furtherance of the Second Party's / Service Provider's activities and shall under no circumstances be considered as an assignment of this Agreement. Second Party shall be under no obligation to seek consent from the First Party(ies) and /or to pay any additional Compensation for the same.

3.10It is especially understood and agreed by the First Party(ies) that all equipment at the Premises shall always remain, without exception, Second Party's property and during the Term of this Agreement and / or upon the expiry of this Agreement or upon its early termination for any reason whatsoever, the Second Party and / or any Associated Persons may remove its equipment, cell site from the Premises without any hindrance / objection from the First Party(ies). Further, it is expressly agreed that the First Party(ies) shall not have any claim, lien or charge on the Equipment, either for Compensation, arrears, fees, compensation or otherwise.

3.11The First Party(ies) has represented to the Second Party that Premises is free from all restrictive covenants, lis-pendens, acquisition and requisition proceedings, minor's claims, mortgage, lien, charge, or claims or encumbrances of any nature whatsoever.

3.12In case in future the First Party(ies) intends to create any mortgage, lien, charge or encumbrance on the Premises including the Premises, the First Party(ies) shall inform the Second Party and take a prior written "No Objection Certificate" from the Second Party. Notwithstanding anything contained herein and without prejudice to the rights of the Second Party with respect to the issuance of no objection certificate on such term and conditions as it may deem fit, the First Party(ies) shall not by any arrangement, agreement, mortgage, lien charge or encumbrance upon or in relation to the Property or otherwise create any rights of whatsoever nature over the Cell Site/Equipment, material or any of the rights of the Second Party under this Agreement. Any mortgage, lien, charge or encumbrance on the Premises including the Premises created by the First Party(ies) shall always be subject to the rights of the Second Party under this Agreement and the First Party(ies) shall be responsible for intimating this provision in writing to Financial Institution/money lender/third party, etc.

3.13The First Party(ies) shall ensure that no hindrance is caused to the Second Party and/ or Associated Persons for any reason whatsoever during the installation of Cell Site and thereafter during Activities carried out at the Premises during the continuance of this Agreement including uninterrupted, unobstructed and unhindered access to the Premises at all times (including during

any pandemic/epidemic) to the Second Party and / or Associated Persons, as the Activities of Second Party and the Service Providers' services are essential services in nature and under the law. In case of any default on part of the First Party(ies) to adhere to this condition, the Second Party shall not be obliged to pay any Compensation for such period when the said default exists. Further, in case the First Party(ies) or any third party, claiming under him or otherwise (directly or indirectly associated with the First Party(ies)), causes any hindrance or restriction or objects to the entry of the Second Party and / or Associated Persons, the Second Party shall intimate the First Party(ies) about the same. It is expressly agreed by the First Party(ies) that immediately upon intimation by the Second Party, the First Party(ies) shall remove or cause to be removed all such obstructions, hindrance, interference in the free ingress and egress of the Second Party and / or the Associated Persons, Equipment, appliances, apparatus, materials etc. However, if the First Party(ies) does not make necessary arrangement to remove or cause to be removed such hindrance, etc. immediately or within specified time, if any, no Compensation or any money shall be payable by Second Party to First Party(ies) and the First Party(ies) shall be liable to pay Rupees Two thousand only per hour on account of such hindrance, obstructions etc. as genuine, pre-estimated reasonable and pre-agreed liquidated damages. The First Party(ies) further hereby agrees to pay on actuals any and all losses suffered by the Second Party and Service Provider(s) in case the Second Party is compelled to remove its Cell Site/Equipment from the Premises for any reason whatsoever attributable to the First Party(ies), during the Term of this Agreement.

3.14 Further, the First Party(ies) shall provide for an appropriate space in the Property/Premises for the installation of the Power Meter(s) and other allied installations including but not limited to the D.G set as may be required in the event of any technical, administrative limitations. The First Party(ies) agrees that under any circumstance it shall not claim and/or not be entitled to have nor shall draw a connection from the D.G set installed or EB connection of the Second Party in whatsoever manner.

3.15 The First Party(ies) shall extend all co-operation and facilities to the Second Party / Associated Persons and to do all that is necessary to facilitate the Second Party in obtaining all clearances/certificates/permissions/ sanctions as may be required from any statutory, government and/or municipal/local authority(s), from time to time. The First Party(ies) shall provide to the Second Party / Associated Persons, on demand, all the necessary documents/applications, undertakings, indemnities, affidavits etc. duly signed on the format as may be prescribed in this regard, to enable the Second Party to apply for and obtain electricity connection(s), necessary permissions & No Objection Certificates for the Cell Site from the concerned authorities, including electricity board/company. In case the First Party(ies) is required to appear before any authority for obtaining any permission, sanction, connection, NOC etc., he/she/they shall appear at the scheduled time and at the appointed place as may be necessary, upon intimation being given by the Second Party.

3.16 If any charges are to be paid on account of seeking NOC/permission, connection for installation of the infrastructure / telecom equipment to any authority(s) the same shall be paid by the Second Party / Service Providers as the case may be. All allied costs & expenses shall be borne by the Second Party.

3.17 In the event any construction, renovation, repair, demolition is required to be carried out on the Property, the First Party(ies) shall serve a notice in writing of its intention to commence such renovation, repair, or demolition at least 30 days prior to such commencement, to the Second Party. The First Party(ies) and the Second Party shall in good faith discuss and agree on the measures to be taken by the First Party(ies) for protection of the Cell Site infrastructure during the said renovation, repair or /demolition. Any cost to be incurred for safeguarding the Second Party's Equipment, installed on the Premises, as a result of the said renovation, repair or / demolition shall be borne by the First Party(ies). However, the First Party(ies) shall take requisite care and measures to ensure that such renovation, repair, or shall not cause impediment/interference in the Activities of the Second Party from the Premises or closure/suspension of operations of the Second Party. Further, no such renovation, repair or shall be undertaken, if the same is likely to render the Property / Premises unfit for the use of the Second Party. Further the First Party(ies) shall not ask the Second Party to shift or relocate its equipment to any other part of the Premises for any such type of repair, maintenance or renovation work.

3.18 That the First Party(ies) shall ensure that there shall be minimum required distance maintained between the equipment of the Second Party and any other structure installed / proposed by the First Party(ies) or third parties claiming through the First Party(ies) near to the Premises and the First Party(ies) shall ensure that such structures shall not cause any obstruction, hindrance to the installation/ Tower(s), structures and other equipment and appliances of the Second Party.

3.19 The First Party(ies) shall not install, cause, or allow to be installed on the Property, any communication facilities/equipment, the placement or operation of which, in the judgment of the Second Party, may interfere with the working of the Equipment. However, the First Party(ies) shall obtain a "No Objection Certificate" in writing from the Second Party before giving away for usage or otherwise any other part of the Property to any other entity engaged in the business of communication, radio, telephone, paging VSAT, telegraph etc. or installing or causing to install any hoarding/ neon sign or other structure etc. on any part of the Property.

3.20 The First Party(ies) hereby specifically undertakes and covenants with the Second Party that if any obstruction or dispute is caused by other occupants of the Property, neighbours or any third party to the Second Party's installations during the term of this Agreement, the First Party(ies) shall remove the obstruction or resolve the dispute at its own expense. During the period of obstructions, the First Party(ies) shall not be entitled to claim any Compensation from the Second Party & the Second Party shall be entitled to an abatement of all or part of the Compensation, proportionate to the extent and period for which the Premises cannot be utilised by the Second Party. If any NOC etc. is required from any neighbour or third party for and in relation to the Premises then the same shall be the responsibility of the First Party(ies) at his own cost and is to be provided to the Second Party within the time stipulated by the Second Party.

3.21 The First Party(ies) shall be entitled to inspect the Premises while wearing full safety gear at all reasonable hours of any working day during daytime with 2 days prior written notice, in the presence of the authorised personnel of the Second Party.

3.22 The Second Party shall not be responsible or liable in any manner whatsoever for any injury or damage which may be caused to any person, allowed by the First Party(ies) or who otherwise unauthorizedly enters the Premises, and / or who tampers or interferes with the Equipment of the Second Party or Associated Persons etc.

3.23 The Second Party shall ensure that no damage is caused to the Property/ Premises during the installation of the Equipment/Cell Site and in case of damage, the same shall be repaired by the Second Party at its costs and expenses. The First Party(ies) shall carry out at its own cost all major and structural repairs to the Premises. If at any time during the term of this Agreement, the Premises or any portion thereof is rendered unfit for use by Force Majeure event or otherwise, in that event the First Party(ies) hereby agree that the Second Party shall not be under an obligation / liable to pay all or part of the Compensation payable for the Premises, proportionate to the extent and duration of the damage, until the whole of the Premises

becomes fit for use. In the event the damage caused is not repaired by the First Party(ies) within 7 days of the Second Party's notice to this effect, the Second Party without prejudice to its right to terminate the Agreement forthwith, may carry out the necessary repairs itself, and recover the costs from the First Party(ies) and/or set-off the same against the Compensation payable to the First Party(ies). In the event of the termination of the Agreement as contemplated herein, the Second Party shall be entitled to get refund of unadjusted Compensation paid by it in accordance with the terms and conditions contained herein.

3.24The First Party(ies) represents and warrants that no officer, director, employee of the Second Party or immediate family member thereof was offered or have received / or will receive anything of value of any kind from the First Party(ies) or his/her family members or known to, employees, directors, employees or agents in connection with this Agreement and that no personnel of the Second Party have any business relationship of any kind with the First Party(ies) or his/her officers, directors, employees or agents.

3.25The First Party(ies) also agrees that the Second Party shall have the right to construct fencing around the Premises and / or post security guard/caretaker round the clock at the Premises for the protection of its equipment. It is agreed between the Parties that neither the First Party(ies) nor its relatives nor friends nor the persons claiming any interest or association with the First Party(ies) will be appointed by the Second Party as security guard / care taker at the Premises.

3.26In the event the Second Party merges / demerges / amalgamates / consolidates or transfers its assets with / to any entity, then such new entity shall recognize and accept the right(s) of the First Party(ies) herein and upon the transfer/conveyance having been completed, all the rights and liabilities of the Second Party shall automatically devolve on and / or get transferred to the transferee. The First Party(ies) hereby agrees to such transfer and has no objection to the transfer of the rights of the Second Party under this Agreement, and the terms of this Agreement shall continue to be valid and binding between the First Party(ies) and the transferee company.

4. RESTRICTION ON TRANSFER

The First Party(ies) recognizes the fact that the Premises has been taken under this Agreement by the Second Party for the purposes stated herein and for a long-term period it is therefore agreed between the Parties as follows:

4.1 The First Party(ies) shall not transfer the Property and/or Premises for a period of 5 years from the date of commencement of this Agreement, without the written consent of the Second Party. After the said period the First Party(ies) shall be entitled to do so subject however after giving 60 days prior written notice to the Second Party.

4.2 The First Party(ies) shall not transfer, directly or indirectly, the Premises or the Property to any competitor or entity engaged in providing services similar to that of the Second Party or the Service Providers.

4.3 In the event the First Party(ies) mortgages/transfers/conveys / or otherwise disposes of its rights in the Property and/or the Premises or any portion thereof to a third party and/or the Premises and/or any portion thereof gets conveyed/transferred by contract, operation of law and/or by order of any court/authority, or any other obligation of the First Party(ies), to a third party, such transfer/conveyance shall be subject to this Agreement and shall recognize and accept the right(s) of the Second Party and upon the transfer/conveyance having been completed, the transferee shall step into the shoes of the First Party(ies) and all the rights and liabilities of the First Party(ies) shall automatically devolve on the transferee. The terms and conditions of this Agreement shall remain valid and enforceable against such third party & a clause to this effect shall be incorporated in sale/conveyance deed, etc. between the First Party(ies) and the third party.

4.4 The First Party(ies) hereby assure the Second Party that before effecting any transfer of the Premises or any part thereof to a third person, they shall procure from such transferee a letter of confirmation and acknowledgement, confirming the proposed transferee's unconditional acceptance of the terms and conditions of this Agreement and also its' taking over all the rights and obligations of the First Party(ies), as stated in this Agreement.

5. INDEMNIFICATION

5.1 The First Party(ies) shall indemnify, hold harmless and agrees to continue to indemnify the Second Party, Associated Persons and the Second Party's Directors, employees, officers, personnel, service provider, supplier, authorised representatives, against all claims, demands, causes of action, obligation, litigation, liability, loss, damage, cost and expenses incurred, sustained or faced due to any direct or indirect act or omission and/or misrepresentation, misconduct, fraud, negligence, violation/ breach, of this Agreement or any Law, Rules, Bye-Laws, Notifications or Directions issued by Central, State or Local Authorities, and/or due to any action or negligence on the part of the First Party(ies); and / or for any arrears or default with respect to taxes, or any amount payable by the First Party(ies) for and in relation to the Property / Premises or use thereof by the Second Party. The aforesaid indemnity shall include all costs of shifting, replacement and relocation etc. to any other similar premises, or property and any other cost, loss or damage.

6. TERMINATION

6.1 The Second Party may, at any time hereafter, for any reason whatsoever, after giving sixty days' prior written notice, terminate this Agreement. The First Party(ies) acknowledges and agrees that under no circumstances the First Party(ies) can claim any money / Compensation for the unexpired period of the Term of the Agreement, nor shall the Second Party be liable or responsible for payment of any monies on this account. That During the term of this Agreement and upon termination of this Agreement, the First Party(ies) shall not have or claim any lien, charge or any other right on the Equipment/Cell Site, apparatus, appliances, etc., installed by the Second Party in the Premises. The Second Party shall be entitled to remove all its equipment, apparatus, appliances etc. without any hindrance, obstruction or objection from the First Party(ies) and after successful removal of all equipment, apparatus, appliances, etc. shall leave & handover the possession to the First Party the Premises on as is where is basis, leaving the civil foundation / permanent / semi-permanent / RCC structure. Upon the notice of termination being given, the First Party(ies) shall not be entitled to any further monthly Compensation, as reserved above. Where, upon termination or otherwise, the Second Party is not able to remove its Equipment from the Premises due to any restrictions, hindrance and/or obstruction, caused either by the First Party(ies) or any person, till the time the Second Party's Equipment is lying at the Premises, it shall not be construed that the Second Party is in illegal possession or occupant of the Premises. In such an event, the Second Party shall not be liable or responsible in any manner, whatsoever, for any monies including any Compensation or under any other name to the First Party(ies) and the First Party(ies) shall be liable to pay the Second Party an amount of Rs.2,000/- per day as the genuine, pre-estimated reasonable and pre-agreed liquidated damages between Parties, till the Second Party has removed all its Equipment from the Premises.

6.2 Save to the extent provided for in the Agreement and the T&Cs herein, in the event the entire monthly Compensation payable by Second Party remains in arrear for three consecutive months, the First Party(ies) shall give a written notice by Regd. Post A/D to the Second Party to cure the said default within 60 days of the receipt of the said written notice from the First Party(ies), failing which the First Party(ies) shall be entitled to determine this Agreement.

6.3 Except for the reason stated in clause 6.2 hereinabove, the First Party(ies) does not have any right to terminate this Agreement in any circumstances whatsoever.

6.4 The Term mentioned in Table A of this Agreement is further extendable at the sole and exclusive option of the Second Party for same Term and conditions of this Agreement. This Agreement shall be irrevocable for the Term provided always that the Second Party shall have the right to terminate this Agreement as provided under this Agreement.

7. GENERAL CLAUSES

7.1 Any notice or communication with reference to this Agreement unless otherwise specified herein, shall be deemed to be validly sent if dispatched by registered post acknowledgement due to the other Party at the respective addresses mentioned in Part I of this Agreement. Respective Party shall keep the other Party updated of their communication address, as the case may be. The notice/communication to be given to the Second Party shall be addressed to the Circle Legal Head of the Second Party. In case of Co-Owners, all communications shall be sent to the first named Co-Owner(s)(First Party(ies)) in this Agreement and the same shall be deemed to have been sufficiently served on all the First Party(ies).

7.2 The failure of either Party to enforce at any time any of the provision of this Agreement shall not be considered to be waiver of the right of such party thereafter to enforce each and every such provision. Waiver, if any, shall be in writing, signed by the then duly authorised signatory of the concerned party.

7.3 If any provision of this Agreement is determined to be void or unenforceable under any law applicable for the time being, such provisions shall be deemed amended or modified or deleted in so far as is reasonably inconsistent with the provisions of this Agreement and to the extent necessary to conform to applicable law and the remaining provisions of this Agreement shall remain valid and enforceable in accordance with these terms.

7.4 The Second Party has taken/may take loans from third party or financial institution, Banks etc., from time to time by creating pledge and hypothecation over all or any of the Equipment, apparatus etc. at the Premises. In respect of Equipment, apparatus etc. pledged and hypothecated to such third party or financial institution etc. as by way of security for realization of the loans, the First Party(ies) agrees not to create any obstruction in the said third party or financial institution, Banks etc., in exercising their rights under the loan arrangement/lease. The First Party(ies) shall not have any claim, lien or charge on the Equipment, apparatus etc. either for Compensation, arrears, fees, and compensation or otherwise.

7.5 If at any time, the Premises or any part thereof is destroyed or damaged or rendered substantially or partially unusable, due to beyond reasonable control of the First Party(ies) and not of its own making and amounting to force majeure event as or due to an act of god, tempest, flood, earthquake, lightening, atmospheric disturbance, fire, riot, terrorism, violence of any army or of a mob, civil or military action, war or by any irresistible forces or by the orders of any statutory/government/local authority (where such orders or directions have been issued not due to default of the First Party(ies)), so as to become unfit for occupation and/or use for the purposes for which it was let and/or Second Party is prevented from using the Premises ("**Force Majeure**"), the Second Party shall not be liable to pay the Compensation to the First Party(ies) for the period for which Second Party was prevented and/or could not occupy and use the Premises due to Force Majeure event. Further, First Party(ies) undertakes to carry out the necessary repairs within 7 days of the occurrence of the Force Majeure event, and no Compensation and other outgoings shall be paid until the Premises shall have again been rendered fit for occupation. Further, if the First Party(ies) neglects to make, within the said 7 days after notice, any repairs which he is bound to make to the Premises or the Building, the Second Party may make the same itself, and deduct the expense of such repairs with interest from the Compensation, or otherwise recover it from the First Party(ies). If the First Party(ies) neglects to make any payment which it is bound to make, and which if not made by the First Party(ies), is recoverable from the Second Party or against the Premises or Building/Property, the Second Party may make such payment itself, and deduct it with interest from the Compensation, or otherwise recover it from the First Party(ies). Additionally, the Second Party shall have the option to terminate this Agreement with immediate effect by giving a written notice.

7.6 Modification or waiver of any of the terms and conditions of this Agreement shall be effective only when such modifications or waiver is expressed in writing and executed by each of the Parties hereto. Failure of either party to exercise promptly and right herein granted or to require strict performance of any obligation undertaken herein shall not be deemed to be a waiver of such right; or of the right to demand subsequent performance of any and all obligations herein undertaken by respective Parties.

7.7 The Stamp duty and incidental charges thereto in respect of this Agreement and all other documents that may be executed pursuant to this Agreement will be borne by the Second Party.

7.8 Save as provided in this Agreement the First Party(ies) shall not assign or transfer or permit the assignment or transfer of this Agreement or the rights under this Agreement to any other person. The Second Party shall be entitled to assign and / or transfer this Agreement, obligations and / or rights hereunder, usage of the Premises or any part thereof to any of its group, subsidiary, affiliate, associated company(ies), successor-in-interest or any third party without giving any prior notice or requiring the consent of the First Party(ies). In addition to this, notwithstanding anything contained herein, the First Party(ies) hereby agree that the Second Party has the right to assign its rights and obligations under this Agreement to any bank and/or financial institutions for subsisting and/or future arrangements and the First Party(ies) further expressly agrees and does not object that the Second Party may, without recourse, effect such assignment without any further act or any form of consent or reservations from the First Party(ies).

7.9 No right or remedy conferred upon or reserved to a non-defaulting party by this Agreement is intended to be or shall be deemed to be exclusive of any other right or remedy provided or permitted by law or equity. Each such right or remedy shall be cumulative of every other right or remedy.

7.10 This Agreement is a culmination of the discussions and negotiations between the Parties and constitutes the final understanding and agreement between them and all rights and obligations with respect to the Premises shall be governed only by the Agreement. Any offer, counteroffer or communication made or exchanged between the Parties, contrary to or inconsistent herewith, prior to or post execution of this Agreement shall not be binding between the Parties. The contents of this Agreement have been read over in the vernacular language known to the First Party(ies) and its entire contents have been clearly understood by the First Party(ies) and the First Party(ies) is executing this Agreement on his/her/their own volition and will and without any fraud, misrepresentation or coercion of any sort whatsoever. The Parties agree that the original Agreement shall be retained by the Second Party and a copy thereof shall be supplied to the First Party(ies) by the Second Party.

ANNEXURE L2

Description and Layout of the Premises

ANNEXURE L3 - NO OBJECTION CERTIFICATE(S)

NOC 1 - NO OBJECTION CERTIFICATE

I/We _____ do hereby certify that I/We have No OBJECTION if Municipal Corporation or any other Authority/ies accord approval in the name of our Second Party - Indus Towers Limited having its office at _____

for installation of Cell Site in my/our premises situated at _____

_____.

FIRST PARTY(IES)
Name: _____
Aadhar Card no.: _____
Place : _____
Date : _____

NOC 2 - NO OBJECTION CERTIFICATE

I/We _____ have given our space on the plot of land / roof top of our premises at _____,

to Indus Towers Limited having its office at _____

_____ for the installation of Cell Site on the Premises situated at _____.

I/We have no objection in permitting them to have a separate electrical load sanctioned upto 25 KVA in their favour from Electricity Board to meet their requirements.

FIRST PARTY(IES)
Name: _____
Aadhar Card no.: _____
Place : _____
Date : _____

TO WHOMSOEVER IT MAY CONCERN

This is to certify that Indus Towers Limited; having its office at _____

_____ has been permitted to dig _____ earth pits

at the distance of _____ meters for laying the earth for the safety of the Equipment installed at _____.

_____.

FIRST PARTY(IES)
Name: _____
Aadhar Card no.: _____
Place : _____
Date : _____

DECLARATION RELATING TO NON-REGISTRATION UNDER THE GST LAWS

Indus Towers Limited
Building No. 10, Tower A, 4th Floor,
DLF Cyber City, Gurugram – 122002, Haryana

Dear Sir/Madam,

We hereby confirm that we are not required to get ourselves registered under the Act as our annual aggregate turnover, computed under and as per the GST laws, does not exceed threshold limit prescribed under the GST laws.

In case any liability arises on account of any tax demand, interest, fee or penalty under GST law for failure to comply with the provision of GST law, the same shall be borne by us.

We request you to treat this communication as a declaration regarding non-requirement of being registered under the GST laws.

OWNER(S)
Name: _____
Aadhar Card no.: _____
Place : _____
Date : _____

Declaration cum Indemnity Bond by the Owner(s)

This Declaration cum Indemnity Bond (hereinafter “Declaration cum Indemnity Bond”) is issued on this ____ day of _____, 202____ at _____ by;

The Indemnifier(s):

Individual(s)				
Full name in capital letters	Age (yrs.)	W/o, D/o, S/o	Aadhar Card No.	Communication Address
Or (Kindly strike off tick whichever is not applicable)				
A company incorporated under the Companies Act, 1956 / 2013 / partnership / Proprietorship / LLP firm / Society / Trust				
Name of the Company	Registered office address		Local office address	

(hereinafter referred to as the “Indemnifier(s)” which term and expression wherever the context so requires and permits and unless repugnant to the context thereof, shall mean and include, as the case may be his/her/their legal heirs, executors, legal representatives, agents, permitted assigns, successors, administrators, subsidiaries, affiliates, successors-in-interest group companies etc.) of the ONE PART;

to and in favour of:

“ The Indemnified”	Name of the Company	Registered Office Address	Circle Office Address
	Indus Towers Limited	Building No. 10, Tower A, 4th Floor, DLF Cyber City, Gurugram – 122002	

(hereinafter referred to as the “Indemnified” which term and expression shall wherever the context so requires and permits shall mean and include it’s subsidiaries, affiliate, group companies, successors-in-interest and assigns) of the OTHER PART.

WHEREAS the Indemnifier(s) has represented that they are the absolute, legal and bonafide Owner(s)and in peaceful possession of the property bearing Khata no. _____, Plot no. _____, Mouza-_____, P.S.-_____, Tehsil-_____, SRO-_____, District-_____, State-_____ (hereinafter referred to as “the Property”);

AND WHEREAS the Premises at the Property is being demised unto the Indemnified under the Agreement dated _____ (“Agreement”), together with all rights, easements, privileges belonging to the same or purports to belong to it or usually held or enjoyed with it along with the right of ingress and egress to all common areas of the Property, for the purposes of purpose of establishing, constructing, installing, maintaining, operating and storing various kinds of Telecom Equipment/Cell Site/Appliances/Tower(s)s and other assets in order to provide the same to Companies providing essential services of telecommunication services;

AND WHEREAS the Indemnified on the faith and representation made to it and subject to the Indemnifier giving Declaration cum Indemnity, the Indemnified agreed to take the Premises at the Property on terms mentioned in the Agreement;

AND WHEREAS pursuant to the above and for good and valuable consideration under the Agreement, the receipt and sufficiency of which is acknowledged by the Indemnifier, the Indemnifier is hereby issuing this Indemnity Bond, in suppression of and notwithstanding anything contained in the Agreement between the Indemnifier and the Indemnified.

NOW THEREFORE THIS INDEMNITY BOND WITNESSETH AS UNDER:

1. The Indemnifier(s) hereby jointly and severally represent, warrant, declare and unconditionally and irrevocably undertake that:
- i.

The Indemnifier(s) are fully competent and have all the authority, power, permission and rights to enter into the Agreement and provide this Declaration cum Indemnity in favour of the Indemnified to which the Indemnifier(s) shall be bound with and fully comply and that the capitalised terms shall have the meaning ascribed to it in the Agreement unless specifically provided for herein;

- ii. The Indemnifier(s) are jointly the absolute, legal and bona fide Owner(s) and in peaceful possession of the Property and the Indemnifier(s) has all the requisite authority, power, rights, permissions and grants to provide the Premises to the Indemnifier(s) together with all rights, easements, privileges belonging to the same or purports to belong to it or usually held or enjoyed with it along with the right of ingress and egress to all common areas of the Property for the purpose of establishing, constructing, installing, maintaining and storing various kinds of Telecom Equipment/Cell Site/Appliances/Tower(s) and other assets in order to provide the same to various telecommunication service providers;
 - iii. the Property and the Premises is neither subject matter of nor is subject to any dispute, pending litigation or any order of any Central, State or local administrative, judicial, and / or regulatory authority;
 - iv. The Indemnifier(s) shall in a timely manner fully cooperate and provide all the necessary documents, and present itself along with the proper witnesses (two in numbers) for registration of the Agreement, wherever it is applicable under the law, before the appropriate authority as notified either by the Indemnified or any of its agents, representatives, and on default or failure of any of the above, the Indemnifier(s) agrees that without prejudicially affecting the rights of the Indemnified under the Agreement and / or with respect to the Premises, the Indemnified shall be well within its rights to continue to possess and use the Premises and the Indemnifier(s) shall have no right under the law or under the Agreement to claim Compensation or any money under whatsoever name or manner till the later of (i) the Agreement is registered, or (ii) the expiry of the Compensation free period;
 - v. The Indemnifier(s) shall ensure that the Indemnified and the Associated Persons shall have unrestricted and unconditional 24x7x365 days access to the Premises, including during endemic or pandemic;
 - vi. The Indemnifier(s) neither has nor shall claim any rights of whatsoever nature over the equipment, goods, material, assets or any property of the Indemnified or any of its Associated Persons;
 - vii. Neither the Indemnifier(s) or any of its associated person(s) has nor shall have any rights or entitlement of whatsoever nature to claim any monies from the Indemnified or any other party on account of any of the activities carried out by the Indemnified and / or Associated Persons at Premises, or for use, or sharing of the infrastructure services of the Indemnified by any number of OpCos at the Premises;
 - viii. The Indemnifier(s) is the person of clear antecedents and has no criminal background, and that neither it nor any of its associated person(s) shall - (a) directly or indirectly cause any hindrance, disruption in any of the activities and / or operations of the Indemnified and / or Associated Persons at the Premises; (b) cause any harm and / or damage to the equipment, goods, material, assets or any property of the Indemnified or the Associated Persons; (c) indulge into any activity or inaction that may render the Premises unusable or that prejudicially affects or deteriorates the rights of the Indemnified and / or Associated Persons;
 - ix. Without prejudice to the rights of the Indemnified under the Agreement, and in addition to thereof the Indemnifier(s) and / or any person shall neither have any right nor shall claim Compensation or any money under any name (a) for the unexpired period of the Agreement; (b) and where the Indemnified is not able to use the Premises as per its rights under the Agreement; and / or (c) where due to the default / breach of the terms of the Agreement or any act or omission of the Indemnifier(s), the Indemnified and Associated Person is in possession of the Premises or any of the equipment, goods, material, assets or any property of the Indemnified or the Associated Persons is at the Premises;
 - x. The Indemnifier(s) is solely responsible for payment of all taxes, statutory and / or any other administrative dues arising out of or related to the Property and the Premises thereof and the Indemnifier(s) shall make all such payments completely and in a timely manner;
 - xi. The Indemnifier(s) shall not, without the prior written approval of the Indemnified, submit or make any representation, reply(ies), statement for and in relation to the Indemnified and / or any of the activities / operations of and by the Indemnified and its Associated Persons, to and in any inquiry, notice, proceedings by any regulatory, administrative or judicial authority;
 - xii. The Indemnifier(s) shall indemnify, hold harmless and defend the Indemnified, its affiliates, group companies, Associated Persons and their respective employees, officers and directors from and against any claims, loss, damage, penalty, levy and/or expenses (including Counsel's fees) and other incidental expenses and/or other liability (direct, consequential, incidental or indirect) due to or arising out of breach of any of the representations, warranties, declarations, undertakings and / or terms of this Declaration cum Indemnity.
2. This Indemnity Bond has been executed to secure the interest of the Indemnified shall remain irrevocable for all purposes.
3. The Indemnifier(s) hereby agree to pay the monies under this Indemnity Bond, without any recourse, in respect of any loss, claim, damage or expenses (including Counsel's Fees) and/or any liability (direct, consequential incidental or indirect) with reference the Property at the first instance upon receipt of a demand from the Indemnified, without the necessity for the Indemnified having to pay or incur the same and then to recover such monies from the Indemnifier(s). The Indemnifier(s) also agrees that a demand made by the Indemnified under this or pursuant to this Declaration cum Indemnity shall be final and conclusive, and the Indemnifier(s) shall accept the same without any demur and / or contestation.
4. That the Indemnifier(s) declares that the Indemnity Bond have been drafted on the instructions of the Indemnifier(s) and have also been read over and understood by the Indemnifier(s) in the vernacular language in the presence of the witnesses to this Indemnity Bond. The Indemnifier(s) has fully understood and is aware of the purpose of executing this Indemnity Bond.
5. This Indemnity Bond is executed by the Indemnifier(s) in its individual capacity as well as in its capacity as the absolute Owner(s) of the Property and has been executed out of free will and consent without any undue force, coercion, influence and/or threat from any person in charge and/or representatives of the Indemnified or whatsoever.

In witness whereof the Indemnifier(s) is issuing this Declaration cum Indemnity Bond on the day, month and year first herein above written.

Indemnifier(s)

Name: _____
Aadhar No. _____

In the presence of Witnesses: 1. _____ 2. _____
Name and signature(s): _____ _____